

**Legal Counsel Update: June 11, 2026**

**10:00 a.m. – Board of Commissioners Conference Room**

Attending: Commissioners Ron Smith, Colene Martin and Gary Richardson; Wally Hicks, Legal Counsel; Kassie Austin, Recorder

**1. Declaration of Potential Conflicts of Interest**

The Josephine County Board of Commissioners reviewed today's agenda and determined there were no potential conflicts of interest.

**2. Ordinance No. 2026-xxx; An Ordinance Amending Chapter 2.05 of the County Code Relating to the Meetings of the Board of Commissioners**

Wally Hicks, Legal Counsel presented a draft ordinance amending Chapter 2.05 of the Josephine County Code relating to meetings of the Board of Commissioners. Hicks reviewed the ordinance adoption process required under the Josephine County Charter, including the requirement for two readings conducted at least thirteen days apart and opportunities for public comment prior to adoption. Hicks explained that the proposed amendment would simplify existing provisions relating to executive sessions by referencing applicable Oregon Public Meetings Law and Charter requirements rather than retaining more prescriptive local language.

Hicks explained that the proposed revision was intended to provide greater flexibility as laws, court decisions, and administrative practices regarding executive sessions continue to evolve. Commissioners discussed recent challenges associated with executive session procedures and expressed support for updating the code to maintain consistency with current legal requirements while preserving transparency and compliance with Oregon law. The Board reached consensus to proceed with placing the ordinance on a future Weekly Business Session agenda.

**3. Administrative Policy Revisions:**

- a. A-04; Contract Signing Authority
- b. D-02; Position Requisitions
- c. D-03; Personnel Actions
- d. A-07; Advisory Bodies

Legal Counsel reviewed proposed revisions to several administrative policies previously discussed by the Board. Discussion focused on contract signing authority, personnel requisition procedures, personnel actions, advisory body appointments, and the role of commissioner liaisons within County departments. Hicks explained that many of the revisions were intended to update policy language, clarify responsibilities, and improve administrative efficiency.

Commissioners discussed whether formal liaison assignments remained necessary for all departments and noted that some departments may benefit from commissioner involvement while others operate effectively without designated liaisons. Discussion occurred regarding leadership development, communication between department heads and the Board, and potential opportunities for departments to provide regular updates during Administrative Workshops. Commissioners generally expressed support for maintaining flexibility and assigning commissioner involvement on an as-needed basis rather than through a formal countywide liaison structure.

The Board also discussed contract signing authority and acknowledged previous concerns regarding administrative inefficiencies created by requiring Board approval for routine transactions. Commissioners expressed support for allowing department heads additional flexibility to conduct business within approved budgets while maintaining appropriate oversight and accountability measures. Hicks indicated he would proceed with preparing formal orders to implement policy revisions following additional review.

Discussions additionally occurred regarding advisory body appointments and removals. Commissioners expressed support for maintaining flexibility while preserving opportunities for public participation and due process when appropriate. Hicks agreed to incorporate Board feedback into future policy drafts.

**4. Personnel Policy Revisions:**

e. Article 5; Section 5; Workplace; Service or Working Animals

b. Article 8; Section 1; Travel

Legal Counsel reviewed proposed revisions to personnel policies concerning workplace service animals and employee travel. Discussion occurred regarding compliance with the Americans with Disabilities Act and ensuring County policies remain consistent with applicable federal and state laws governing service animals in the workplace. Commissioners discussed balancing legal requirements with operational considerations and public accessibility concerns.

The Board also reviewed proposed travel policy revisions. Commissioners discussed the value of in-person training opportunities, networking, and professional development while also recognizing the cost-saving benefits of remote attendance when available. Discussion occurred regarding whether County policy should express a preference for remote participation when feasible while still allowing travel when justified by operational needs and educational value. Hicks agreed to further refine the proposed language based upon Board feedback.

Commissioners additionally discussed obtaining information regarding County travel and training expenditures and emphasized the importance of maintaining reasonable oversight while supporting necessary professional development opportunities for County employees.

**5. Other:**

The Board discussed procedures relating to agenda posting requirements and consideration of resolutions. Hicks advised that resolutions intended for Board action should be specifically identified on the published agenda and available for public inspection prior to consideration. Discussion occurred regarding a recently approved resolution and the need to revisit the item through a properly noticed agenda process to ensure compliance with public meeting requirements. Commissioners discussed potential options for bringing the matter back for consideration at a future Weekly Business Session.

Additional discussion occurred regarding organizational structure within Emergency Management and Airports. Commissioners discussed the process for reestablishing separate departmental leadership positions and the personnel actions necessary to implement such changes. Hicks advised that personnel requisitions and personnel action forms could be utilized to formally separate the functions into distinct departments if directed by the Board.

**6. Additional Subject Matters from Commissioners/Announcements**

Commissioners discussed current wildfire conditions throughout Josephine County and noted that fire danger levels had been elevated to Moderate. Discussions occurred regarding public awareness efforts, evacuation zones, and the importance of residents enrolling in emergency notification systems. Commissioners encourage community members to become familiar with evacuation information and preparedness resources as wildfire season progresses.

Meeting adjourned at 10:53 a.m.